

25STCV07343 25STCV07343

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-03

Motion: DEFENDANT AMERICAN HONDA MOTOR CO., INC.'S NOTICE OF MOTION AND MOTION FOR TERMINATING SANCTIONS OR IN THE ALTERNATIVE, FOR ISSUE AND EVIDENTIARY SANCTIONS, AND REQUEST FOR MONETARY SANCTIONS

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Case Number: 25STCV07343 Hearing Date: September 3, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS

ANGELES - CENTRAL DISTRICT

RICARDO CAMPOS SANCHEZ and

MARLENE ROMERO,

Plaintiffs,

vs.

AMERICAN HONDA MOTOR CO., INC.;

and DOES 1 through 10,

inclusive,

Defendants.

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CASE NO: 25STCV07343

[TENTATIVE] ORDER RE: DEFENDANT

AMERICAN HONDA MOTOR CO., INC.'S NOTICE OF MOTION AND MOTION FOR TERMINATING
SANCTIONS OR IN THE ALTERNATIVE, FOR ISSUE AND EVIDENTIARY SANCTIONS, AND
REQUEST FOR MONETARY SANCTIONS

Dept. 731

September 3, 2026

8:30 a.m.

Matter No. 21

Moving Party: Defendant, American Honda Motor Co., Inc.

Opposing Party: Plaintiffs, Ricardo Campos Sanchez and Marlene Romero

Notice: OK

Background Facts

Pleadings

Plaintiffs Ricardo Campos Sanchez

and Marlene Romero bring this action against Defendant American Honda Motor Co., Inc. ("Honda") and Does 1 through 100, inclusive, alleging various statutory claims arising from defects in a motor vehicle purchased and/or leased by Plaintiff in September 2019 and manufactured and/or distributed by Honda.

a. Motion

Before the Court

Now before the Court is Honda's

opposed motion for (1) terminating sanctions for Plaintiffs' failure to attend depositions, (2) in the alternative, an order of dismissal on the same grounds, (3) in the alternative, evidence and/or issue sanctions on the same grounds, and (4) monetary sanctions arising from Honda's counsel's work attempting to secure Plaintiffs' depositions.

Plaintiffs' opposition critically

clarifies a deposition went forward on August 5, 2026, for Plaintiff Marlene Romero, and on August 21, 2026, for Plaintiff Ricard Campos Sanchez.

The parties' opposition and reply

papers disagree as to whether all or only part of the relief requested in Honda's original motion is mooted.

Motions for

Terminating [Including Dismissal], Evidence, and Issue Sanctions

a. Legal

Standard

If a party or a party-affiliated

deponent disobeys a court order requiring their attendance, testimony, or production of documents, the court may issue any appropriate orders, which may include issue sanctions, evidence sanctions, or terminating sanctions against either the deponent or the affiliated party. (Code Civ. Proc., § 2025.450, subd. (h).)

Discussion

The Court determines that the

component of Honda's motion seeking terminating, evidence, and issue sanctions has been rendered MOOT by the taking of Plaintiffs' depositions in August 2026, a position with which the Court agrees insofar as part of the purported discovery abuses—failure to submit for depositions, failure to follow direction re: depositions in a prior order—have been remedied by the taking Plaintiffs' depositions.

c. Conclusion

Defendant American Honda Motor Co.,

Inc.'s motion is thus MOOT as to terminating, evidence, and issue sanctions.

Request for Monetary

Sanctions

a. Legal

Standard

If a party or a party-affiliated

deponent disobeys a court order requiring their attendance, testimony, or production of documents, the court may issue any appropriate orders, which may include monetary sanctions against either the deponent or the affiliated party. (Code Civ. Proc., § 2025.450, subd. (h).)

Discussion

The Court finds that sanctions

would be unjust here. The parties offer conflicting versions of the sufficiency

of Plaintiffs' efforts to go forward with depositions. (Compare Motion, Casolari Decl., ¶¶ 3-18, with Opposition, Abdo Decl., ¶¶ 3-16.) Under the circumstances, with Honda first having requested depositions in March 2026, one year after this action was filed, the parties presenting reasonable interpretations of Plaintiffs' efforts to submit to depositions, and the depositions having been completed in August 2026, sanctions are not appropriate.

c. Conclusion

Defendant American Honda Motor Co.,
Inc.'s request for monetary sanctions is DENIED.

Defendant American Honda Motor Co.,
Inc. is ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 3, 2026 _____

MARK C. KIM

Judge of the
Superior Court